BEFORE THE PROCUREMENT REVIEW COMMITTEE

BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL NO. 23/2026

M/S Ali Muhammad Mastoi
Firdous Colony, Jaffarabad, Usta Muhammad

...............Appellant

VERSUS

1. Government of Balochistan, through the Chief Secretary, Balochistan
2. Complaint Redressal Committee, through the Secretary Energy Department, Government of Balochistan
3. Director General South, Energy Department, Government of Balochistan
4. M/S. Kashif Langah Construction Company + M/S Zaid Enterprises

.... Respondents

Quorum

1. Mr. Habib Ur Rehman Jamot .... Chairman PRC
2. Mr. Mubashir Ali Khan (FCIPS) .... Member PRC
3. Engr. Junaid Shah ....Member PRC
4. Engr. Iftikhar Ahmed Mir ....Technical member PRC
5. Syed Muheebullah ....Private Member PRC

DECISION

Dated: 23-02-2026

Mubashir Ali Khan (FCIPS) – Member PRC. The instant appeal has been filed by the Appellant under Rule 56-A of the Balochistan Public Procurement Rules, 2014, challenging the Technical Evaluation Report issued in respect of TSE No. 252609875803 for "Provision and Installation of Solar Street Light at Firdous Colony at M/C Usta Muhammad" (Estimated Cost: PKR 10,000,000/-).

2. It is the Appellant's case that the evaluation criteria stipulated by the Procuring Agency were unreasonable and lacking clarity. In particular, the requirement for work orders and completion certificates amounting to 100% of the project's total estimated cost.
3. The Appellant further contends that bid security was not part of the evaluation mechanism, violating Rule 29 of the BPP Rules, 2014. It is also asserted that no attendance sheet was prepared at the time of bid opening on October 22, 2025,

contrary to the requirement of Rule 33(6) which requires all bidders in attendance to sign an attendance sheet.

4. The Appellant's bid was declared non-responsive on the ground of "No Experience in similar nature of work." The Appellant contends otherwise, maintaining that his bid was accompanied by documentary evidence of extensive relevant experience, which the Respondent Procuring Agency failed to consider.
5. The Appellant also raises concerns regarding the pattern of responsive bidders across multiple tenders floated by Respondent No. 3. It is contended that in all tenders, only three bidders were consistently declared responsive and Respondent No. 4 (Zaid Enterprises) while always being responsive with different JV partners, submitted identical financial bids of Rs. 9,769,592.49 in 7 out of 8 tenders.
6. Regarding the Complaint Redressal Committee, the Appellant contends that the CRC decision dated 13.01.2026 mentions the external member only as "Representative of Local Government & Rural Development Department" without name or designation, raising questions about whether an external member actually participated in the proceedings. The Appellant also points out inconsistencies in the evaluation reports, including signatures of members being inconsistently present and timings near midnight, suggesting lack of transparency.
7. Being aggrieved by the evaluation outcome, the Appellant approached the CRC, which kept the Procuring Agency's decision upheld. Consequently, the Appellant has preferred the instant Appeal before this Committee.
8. Upon admission of the Appeal, this Committee issued notices to the Respondents, directing them to enter appearance and file written replies.
9. Respondents No. 3 appeared and filed his para-wise reply, contesting the appeal on both factual and legal grounds. At the outset, the official respondent contended that under the BPP Rules, 2014, the jurisdiction of this Review Committee is limited to examining procedural illegality, violations of rules, or mala fide intent on the part of the Procuring Agency, and the Appellant has failed to establish any such irregularity.
10. The respondents raised an objection regarding the timing of the Appellant's challenge. They pointed out that the bids were advertised in September 2025 and the Appellant submitted his documents in October 2025 without objection. They argued that challenging the eligibility criteria at this appellate stage is time-barred.
11. On the merits, the respondent submitted that the Appellant failed to meet the basic eligibility criteria stated in the bidding document. The specific grounds for disqualification, as stated in the reply, are:

a. Failure to produce a single work order

b. The firm does not possess PEC Code EE11(i), a mandatory condition for participating in Solar Energy works

c. Certificate of Non-Blacklisting was not attached, as required by the department

d. Financial Proposal was submitted without inserting any data.

12. The respondent admitted that the BPPRA had issued a letter dated: 29th September 2025, conveying observations on the evaluation criteria, specifically the passing marks of 80% and the restrictive nature of the criteria. However, the Procuring Agency proceeded with the criteria as originally framed.

13. The Respondent further submitted that the Appellant's objections were duly rejected by the CRC on merits vide its decision on 13.01.2026. They contended that the successful bidder qualified technically, offered the lowest evaluated financial bid and was issued a Letter of Acceptance in accordance with Rule 43 of BPPR Rules, 2014 after the disposal of grievance by the CRC.

14. The respondent further submitted that the instant Review Appeal appears to be a delay tactic aimed at obstructing a public welfare project involving solar street lights, which is against public interest and the principle of good governance. Accordingly, the respondent prayed that the appeal be dismissed.

15. Unfortunately, in the days subsequent to the aforementioned proceedings, the law and order situation in the province deteriorated to an unprecedented level. The prevailing environment of heightened insecurity severely impaired the ability of this Committee to convene hearings in a timely manner. The disruption, however, was neither anticipated nor within the control of any party or the Committee itself and it necessitated an inevitable deferment of the scheduled proceedings.

16. During this period, this Committee received and considered requests for adjournment and extension of hearing dates submitted by both the Appellant and the Respondents. Mindful of the extraordinary circumstances and the principle of ensuring fair and unhindered access to justice, the Committee allowed these requests despite the consequent compromise upon the timeline stipulated under the Rules for the announcement of the final decision. The Committee remained cognizant that adherence to procedural timelines, while sacrosanct under ordinary circumstances, had to be balanced against the overriding imperative of conducting proceedings in a secure, fair, and transparent manner.

23/02

23/2

17. It is, however, placed on record that the Committee, throughout this period of disruption, consistently prioritized the eventual adjudication of the lis on its merits. All extensions were granted with the explicit understanding that parties would cooperate in expeditiously concluding the proceedings once the law and order situation permitted the resumption of normal functioning. The delay, though regrettable, was neither occasioned by any lapse on the part of this Committee nor by the dilatory conduct of any party; rather, it was an unfortunate consequence of forces entirely extraneous to the adjudicatory process. The Committee now proceeds to render its findings based on the record as finally augmented by the parties pursuant to the directions recorded in the preceding paragraphs.
18. As the law and order situation in the province showed signs of stabilization, Communications were issued to all parties, scheduling fresh hearings. Both the Appellant and the Respondents were afforded full opportunity to present their cases. The Committee remained mindful of the delay already caused and therefore prioritized the expeditious conclusion of the matter.
19. The following issues arise for determination from the pleadings of the parties:
    a. Whether the Appellant possesses the requisite work experience of similar nature?
    b. Whether the procedural irregularities pointed out by the Appellant, even if proven, would entitle him to the relief sought?
20. With respect to the first issue, this Committee called upon the Appellant to produce, the work orders in support of his claimed experience. However, the Appellant, having been afforded opportunity, failed to satisfy the Committee regarding the existence of such documents, thus could not establish his experiential competence as required in the eligibility criteria. The Appellant's failure to establish his own eligibility is fatal to his appeal.
21. However, during the proceedings, this Committee has taken notice of certain procedural irregularities that surpass the Appellant's individual grievance. These irregularities, if left unaddressed, have the potential to undermine public confidence in the procurement process of the Energy Department. The Committee, therefore, deems it appropriate to examine these matters, even though they do not entitle the Appellant to the sought relief.
22. The following procedural irregularities have come to the notice of this Committee:
    a. The Procuring Agency proceeded with the criteria without addressing the non-compliance identified by BPPRA. While this Committee expresses no opinion

on the merits of the criteria, the failure to properly engage with the regulatory objections reflects poorly on the Procuring Agency's commitment to the oversight mechanism.

b. Rule 33(6) requires that all bidders in attendance at bid opening shall sign an attendance sheet and it is evident from the record that no such attendance was taken from the bidders marked present in the said attendance sheet. This constitutes a serious procedural irregularity.

c. In multiple tenders under the same NIT, only three bidders were consistently declared responsive and Respondent No. 4 always remained part of the responsive consortium, which prima facie indicates lack of genuine competition.

d. Respondent No. 3 has not followed the "Guidelines on Common Areas of Non-Compliance" issued by BPPRA. Specifically, requiring certifications worth 30 marks (Guideline 4A-vi), requiring 100% worth projects of similar nature (Guideline 4A-iii), setting an 80% passing mark despite BPPRA's observation, and repeating the same factors in both eligibility and evaluation (Guideline 4A-xiv) collectively establish that the procurement process was conducted in disregard of the regulatory framework.

e. Complaint Redressal Committees must be properly constituted with identifiable members to ensure transparency and accountability. The omission of the external member's name and designation raises questions about the constitution of the CRC.

23. The cumulative effect of the above is that while the Appellant's appeal must fail due to his inability to establish his own eligibility, the procedural irregularities noticed during these proceedings warrant further examination by the competent authority.

23/02

ORDER

24. For the foregoing reasons, this appeal is dismissed in the following terms:

a. The Appellant's challenge to the Evaluation Reports, is hereby rejected.

b. The contract awarded to Respondent No. 4 pursuant to the impugned procurement shall remain undisturbed, provided that it is not issued during pendency of the Appeal and is not contrary to the provision of BPP Rule 43.

23/2

25. In view of the procedural irregularities established in these proceedings, the Secretary, Energy Department, Government of Balochistan, may hold an inquiry into the matters highlighted at Para 17 above, with particular focus on the compromised regulatory

compliance and adherence to the BPPRA Guidelines. Moreover, the patterns in the said NITs, particularly the high rate of bidder rejection and uniformity of responsiveness of particular bidders across multiple tenders prima facie demonstrate collusive patterns. If so established by the administrative department, the evidence of such cartelization may be referred to the Competition Commission of Pakistan for appropriate action under the Competition Act, 2010.

26. Regarding the Appellant's contention about identical financial bids, this Committee notes that the estimated budget for all tenders was PKR 10,000,000/- and the scope of work was identical across all tenders. In such circumstances, it is not unusual or suspicious for a bidder to quote identical financial bids across multiple tenders. Therefore, this Committee does not find the existence of identical bids, by itself, to be a sufficient basis for concluding impropriety.

27. The inquiry be completed within fifteen (15) days of this order, and a report be submitted to this Committee and appropriate action under the relevant Rules be taken against any official found responsible for violations.

28. This decision disposes of the appeal while ensuring that procurement governance is safeguarded through the inquiry directed above.

Habib Ur Rehman Jamot

Chairman
...ent of Balochistan
...ment Review Committee
(B-PPRA)

23/2/2026.

23/02/26

Mubashir Ali Khan (FCIPS)

Member
...nt Review Committee
BPPRA

Engr. Junaid Shah

Member
...nt Review Committee
BPPRA

Engr. Iftikhar Ahmed Mir

- 23/2/2026

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